

TENTATIVE RULINGS

Date: September 17, 2026

#	Case Name	Tentative
1.	30-2021-01231249	1. Motion for Attorney Fees
	Pal vs. US Bank, N.A	Plaintiff Aloke Pal, proceeding <i>in pro per</i> (“Plaintiff”) moves pursuant to Code of Civil Procedure section 382 for attorney fees. Specifically, Plaintiff asks the Court for the following: “Plaintiff requests an order for Plaintiff’s proposes settlement for 1.5 billion US Dollars: A. Approving the requests for attorneys’ fees to proposes Interim Settlement Class Counsel, the Plaintiff, in the amount of \$450,000,000, or 30% of the Settlement Funds; B. Approve reimbursement of litigation expenses of \$22,500,000, or 1.5%; of the Settlement Funds; C. Approve service awards of \$1,000,000 to each of the proposed Class Representatives, to be determined, ‘Save American Workforce,’ for a total amount to be determined. Plaintiff needs this award to pursue the class litigation and organize the interim settlement team.” Defendant US Bank, N.A. (“Defendant”) opposes the motion. The Motion is DENIED. First, Plaintiff’s motion fails to comply with the Code. For example, California Rules of Court, rule 3.1113 expressly states that “[e]xcept in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.” (Cal. Rules of Court, rule 3.1113, subd. (d).) Plaintiff grossly violates this rule and the Court will not consider arguments made beyond the 15 page limitation. Plaintiff also fails to file a proof of service establishing that the moving papers were properly served. Moving forward, Plaintiff MUST file a proof of service and failure to file a proof of service may result in sanctions since the Court has ordered Plaintiff to comply with the Code of Civil Procedure regarding service. Moving to the merits of the motion, Plaintiff has not established that he is entitled to attorney fees at this time. “A party may not recover attorney fees unless expressly authorized by statute or contract.” (<i>Hom v. Petrou</i> (2021) 67 Cal.App.5th 459, 464 [citing <i>Brown Bark III, L.P. v. Haver</i> (2013) 219 Cal.App.4th 809, 818].)

Plaintiff is not the “prevailing party” such that he is entitled to fees. Code of Civil Procedure section 1032 defines the prevailing party as follows:

“ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.” (Code Civ. Proc., § 1032, subd. (a)(4).)

Here, no party has obtained a net monetary recovery and there have been no judgments in favor of Plaintiff on the merits of the causes of action alleged related to Plaintiff’s current action, Case No. 2021-01231249.

Plaintiff spends much of his motion arguing that he is entitled to class action fees. The operative Complaint at issue in this case (Case No. 2021-01231249) has not been brought or certified as a class action. As such, Plaintiff is not entitled to any fees that only apply in class action cases.

Moreover, Plaintiff is not entitled to recover fees related to his appeal in Plaintiff’s current action, Case No. 2021-01231249. The Court of Appeal expressly ordered: “In the interest of justice, the parties shall bear their own costs on appeal. (Cal. Rules of Court, rule 8.278(a)(5).)” (ROA 196.)

Plaintiff also appears to seek attorney fees pursuant to contract. “[I]n deciding whether there is a ‘party prevailing on the contract,’ the trial court is to compare the relief awarded on the contract claim or claims with the parties’ demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources.” (*Hsu v. Abbata* (1995) 9 Cal.4th 863, 876.) “The prevailing party determination is to be made only upon final resolution of the contract claims and only by ‘a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.’ ” (*Ibid.*) Here, no relief has been awarded regarding Plaintiff’s contract claims in this case (Case No. 2021-01231249) and therefore Plaintiff is not entitled to attorney fees pursuant to contract at this time.

In sum, the Motion for Attorney Fees is **DENIED**.

Clerk to give notice.

2. 30-2025-01519929

Baloy vs. General Motors

**1. Motion for Attorney Fees
2. Order to Show Cause re: Dismissal on Settled Case**

Plaintiff Dennis Baloy (“Plaintiff”) moves for an order awarding him attorney fees pursuant to Civil Code section 1794(d), in the amount of \$37,045.16 against defendant General Motors, LLC (“Defendant”).

Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the